

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JOSELITO CASTILLO,

Index No.: 715719/2019

Plaintiff

- against -

COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER/DETECTIVE
DONNA FOGUS, AND POLICE OFFICERS "JOHN (JANE)
DOE NO.1" THROUGH "JOHN (JANE) DOE NO. 10"
inclusive, the last ten names being
fictitious and unknown to the Plaintiff,
the persons intended being involved in
wrongful acts against the Plaintiff on
or about and between September 12, 2016
and October 2, 2017,

Defendants.

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The Plaintiff, complaining of the Defendants, by his
attorney, BARRY M. GOLDSTEIN, respectfully shows to this Court and
alleges, upon information and belief:

1: That at all times hereinafter mentioned, the
Defendant, THE CITY OF NEW YORK, was and still is a municipal
corporation duly organized and existing under and by virtue of the
laws of the State of New York, including all the police officers
thereof.

2: That at all times hereinafter mentioned, the
Defendant, THE CITY OF NEW YORK, its agents, servants and/or
employees operated, maintained and controlled the Police Department
of the City of New York, including all the police officers thereof.

3: That at all times hereinafter mentioned, and on or prior to the 25th day of September 2016, Defendants, POLICE OFFICER DONNA FOGUS AND POLICE OFFICERS "JOHN (JANE) DOE NO.1" THROUGH "JOHN (JANE) DOE NO. 10" inclusive, were employed by the Defendant, THE CITY OF NEW YORK, as police officers.

**AS AND FOR A CAUSE OF ACTION FOR VIOLATION
OF PLAINTIFF'S CIVIL RIGHTS: PURSUANT TO
42 U.S.C.A. § 1983**

4: That on or about the 25th day of September 2016, the City of New York, and the New York City Police Department, its agents, servants and employees, falsely arrested and imprisoned Plaintiff upon the charge of felonious assault without just right and without probable cause and without grounds therefor, and with malice against Plaintiff; The City of New York, its agents, servants and employees intended to confine Plaintiff; Plaintiff was conscious of the confinement, did not consent to the confinement, and the confinement was not otherwise privileged, and said confinement continued until on or about November 30, 2016, and the charges were maintained until being dismissed on October 2, 2017.

5: That, upon information and belief, the said arrest and imprisonment was caused by the Defendants, their agents, servants and/or employees, without any reasonable cause or belief that the Plaintiff, was in fact guilty of any crime or violation of law.

6: That the Defendants, their agents, servants and employees acting within the scope of their authority and within the

scope of their employment, detained and imprisoned the Plaintiff even though the Defendants, their agents, servants and employees, had the opportunity to know or should have known that they were doing so wrongfully, unlawfully and without probable cause or reasonable suspicion, directed that the Plaintiff be placed and held in confinement at various locations; that the surveillance video of the incident showed the assailant as having a tatoo on his **right** arm, and the Plaintiff only had a tatoo on his left arm, and therefore could not have been the perpetrator of the crime alleged; and that this was readily apparent to the Defendants at the very outset; and notwithstanding this obvious exonerating feature, the Defendants nevertheless intentionally and maliciously arrested the Plaintiff and charged him with assault.

7: That the Plaintiff was wholly innocent of any criminal charges and did not contribute in any way to the conduct of the Defendants, their agents, servants and employees and was forced by the Defendants to submit to the aforesaid arrest and imprisonment thereto entirely against her will.

8: That as a result of the aforesaid acts committed by the Defendants, their agents, servants and employees acting under their employment and within the scope of their authority, made falsely, publicly, and maliciously, the Plaintiff was compelled to be imprisoned from September 25, 2016 through November 30, 2016 and continued to be charged until October 2, 2017 when all charges against him were finally dismissed.

9: That the Defendants, their agents, servants and employees, as set forth aforesaid on the aforementioned dates, times and places, intended to confine the Plaintiff; in that the

Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

10: That by reason of the false arrest, imprisonment and detention of the Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained without any charge whatsoever, and greatly injured in her reputation, credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer much pain in both mind and body, and emotional and psychological injury, and suffered other losses.

11: That the Defendant, THE CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, the above named defendants, POLICE OFFICER/DETECTIVE DONNA FOGUS, AND POLICE OFFICERS "JOHN (JANE)DOE NO.1" THROUGH "JOHN (JANE) DOE NO. 10" inclusive, in that, upon information and belief, the said Defendant employees lacked the experience, deportment and ability to be employed by the Defendant; in that the Defendant, CITY OF NEW YORK, failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who, upon information and belief, lacked the mental capacity and the ability to function as employees of the aforementioned Defendant; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named Defendants' background and in that they hired and retained as employees of their Police Department individuals who, upon information and belief were inclined to improper behavior; in that the Defendants, upon information and belief, lacked the maturity, sensibility and

intelligence to be employed by the Defendant, CITY OF NEW YORK, their agents, servants and/or employees were otherwise careless, negligent and reckless.

12: That the Defendant, CITY OF NEW YORK, their agents, servants and/or employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named Defendants, POLICE OFFICER/DETECTIVE DONNA FOGUS AND POLICE OFFICERS "JOHN (JANE) DOE NO.1" THROUGH "JOHN (JANE) DOE NO. 10" inclusive, in that they failed to train their employees in the proper procedures to be conducted in conducting a police investigation, review of surveillance video, methods of making proper identification of suspects through body tatoos, and in making an arrest; in the requirements for arrest as set forth in the United States Constitution and New York State Constitution; in the proper method of conducting an investigation; in the proper method of detaining a person; in the meaning of "probable cause"; to exercise the proper deportment and temperament; and to otherwise act as reasonably, prudent Police Officers; failed to give them proper instruction as to the Constitutional requirements to make a valid arrest, as well as their deportment, behavior and conduct as representatives of their employers; and, in that the Defendants, their agents, servants and/or employees were otherwise reckless, careless and negligent.

13: That the Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful Police Officer would have used under similar circumstances

in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation, and in making an arrest without probable cause, and without any cause whatsoever sufficient to bring a charge against the Plaintiff; in that they were negligent, careless and reckless in their investigation of the surveillance video, and in the manner in which they detained the Plaintiff; and in that the Defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

14: That the arrest and confinement of the Plaintiff was in no way caused by reason of any fault or negligence of the Plaintiff.

15: That the Plaintiff was and is wholly innocent of any crime or violation of law, and was forced by the Defendants to submit to incarceration and Court proceedings.

16: That upon examination, the District Attorneys office of Queens County, determined said charges were unfounded, and not supported by probable cause or any credible evidence, that accordingly, the Office of the District Attorney declined to prosecute, and all charges made against Plaintiff by Defendants were dismissed, withdrawn or declined, on October 2, 2017.

17: That the said prosecution and criminal charge was instituted and procured by the defendants, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor, with actual malice and were terminated in favor of the Plaintiff.

18: That the aforesaid actions of the Defendants, their agents, servants and/or employees in falsely arresting and

imprisoning the Plaintiff, deprived him of his rights and liberties as set forth in the Constitution of the United States and of the State of New York, in that they continued to imprison and charge him without any conduct on the part of the Plaintiff to so warrant to wit:

(a) in that all of the actions of the Defendants, their agents, servants and/or employees, were committed with the intention to cause mental and bodily injury to the Plaintiff, to arrest, restrain and imprison the Plaintiff without his consent, the Plaintiff was at all times conscious of his arrest, did not consent to the false arrest and the false arrest and imprisonment were not otherwise privileged: and,

(b) the arrest and imprisonment were not justified by probable cause or other legal privilege; Defendants, their agents, servants and/or employees, acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as Police Officers for said City, falsely arrested the Plaintiff upon a charge of felonious assault, acting in such capacity, knew that such charges were false; and,

(c) that the Defendants, their agents, servants and/or employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants; and,

(d) the failure of the Defendants, their agents, servants and/or employees to hire, train, supervise, discipline or in any other way control the Defendants, in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including Plaintiff; and,

(e) due to the acts of the Defendants, their agents, servants and/or employees, the failure of the City of New York to discipline and properly hire the Defendants and the continued

employment of the Defendants presents a clear and present danger to the citizens of the City and State of New York; and,

(f) that the said arrest and imprisonment and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and was terminated in favor of the Plaintiff; and

(g) that the Defendants, their agents, servants and/or employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the above named Plaintiff; and, in that each and all of the acts of the Defendants, their agents, servants and/or employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as Police Officers for said city and county.

19: Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

20: That at all times hereinafter mentioned, the Defendants were employed in their respective capacities by the Defendant THE CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

21: That at all times hereinafter mentioned, Defendants, POLICE OFFICER/DETECTIVE DONNA FOGUS AND POLICE OFFICERS "JOHN (JANE) DOE NO.1" THROUGH "JOHN (JANE) DOE NO. 10" inclusive were acting pursuant to orders and directives from

Defendant, THE CITY OF NEW YORK.

22: That during all times hereinafter mentioned, the Defendant Police Officers and each of them, separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the Defendants here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the Plaintiff, and deprived Plaintiff of the rights, privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the laws of the United States;

23: The Police Officers of the Defendant THE CITY OF NEW YORK and its individual members who are agents, servants and employees of Defendants, together with persons unknown to Plaintiff, acting under color of law, have subjected Plaintiff and upon information and belief other persons to a pattern of conduct consisting of illegal harassment, false imprisonments and arrests at the time said persons are conducting their affairs in the County of Queens and County of Queens, City and State of New York, in denial of rights, privileges and immunities guaranteed Plaintiff, and other citizens by the Constitution of the United States.

24: Although Defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the Defendant THE CITY OF NEW YORK, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

25: The unlawful and illegal conduct of the Defendants, their agents, servants and/or employees and each of them, deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

(a) The right of Plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

(b) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fifth and Fourteenth Amendments to the Constitution of the United States.

26: That by reason of the aforesaid violations, false arrest and false imprisonment, and malicious prosecution caused by the Defendants, their agents, servants and/or employees who conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of State of New York, and laws thereto, the Defendants, their agents, servants and/or employees violated 42 U.S.C. §1983 in that the Defendants, their agents, servants and/or employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the Plaintiff, thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the

State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending to his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging Plaintiff.

27: That by reason of the aforesaid intentional false arrest and imprisonment, malicious prosecution and deprivation of his rights and liberties as guaranteed by the aforementioned Constitutions, by the Defendants, their agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the Plaintiff suffered great mental and bodily injury, and still suffers and upon information and belief, will continue to suffer great physical and mental pain and was rendered sick, sore, lame and disabled, and he suffered conscious pain and suffering, and that he was otherwise damaged. and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended legal fees and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the Defendants, their agents, servants and/or employees and, upon information and belief, will expend further sums, and the Plaintiff has been otherwise damaged in a sum that is in excess of the monetary jurisdictional limits of all other lower courts that would otherwise have jurisdiction.

28: That by reason of the aforesaid, the Plaintiff requests the following relief:

- (a) Compensatory damages in a sum that is in excess of the monetary jurisdictional limits of all other lower courts that would otherwise have jurisdiction;
- (b) An award of reasonable attorney's fees, costs and disbursements;
- (c) Such other and further relief as to this court may seem just, and proper under the circumstances.

WHEREFORE, Plaintiff demands judgment against the Defendants in a sum that is in excess of the monetary jurisdictional limits of all other lower courts that would otherwise have jurisdiction; together with an award of reasonable attorney's fees, and costs and disbursements; and such other and further relief as to this Court may seem just and proper under the circumstances.

Dated: Queens, New York
February 3, 2020

BARRY M. GOLDSTEIN
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COMPLAINT

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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: February 3, 2020



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BARRY M. GOLDSTEIN
